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PART II

Statutory Notifications (S. R. O.)

GOVERNMENT OF PAKISTAN

MINISTRY OF WATER AND POWER

NOTIFICATION

Islamabad, the 7th January, 2015

S. R. O. 06 (I)/2015.—In pursuance of sub-section (4) of section 31 of the Regulation of Generation, Transmission and Distribution of Electric Power Act, 1997 (XL of 1997), the Federal Government is pleased to direct that the following further amendment shall be made in its Notification No. S.R.O. 389(I)/2010, dated the 4th June, 2010, namely:—

In the aforesaid Notification, after Annexure-XLIV the following new Annexures shall be added, namely:—

“Annexure-XLV

ATLAS POWER LIMITED
REIMBURSEMENT OF 7.5% WITHHOLDING TAX ON DIVIDENDS

Tax Challan No.	payment date	Dividend amount against which tax is being withheld	Tax amount	
			Rs.	Equivalent USD*
IT-2014051603131114460	18-Sept.-14	198,750,000	14,906,250	145,285
IT-2014051603131114461	18-Sept.-14	302,500,000	22,687,500	221,126
		501,250,000	37,593,750	366,411

*NBP TT & OD selling rate of USD as on the 18th September, 2014 is Rs. 102.6

(23)

Carry Forward of Unclaimed Dividend Tax:

USD

Balance brought forward

891,151

NEPRA/R/TRF-68/APL-2007/5916-5918 dated June 10, 2014.

Less Claimed:

5th Agreement Year - 4th interim dividend for FY2013-14 (12.5%)

(18 Dec 2013 to 17 Dec 2014)

(366,411)

Less un-Claimable for 5th Agreement Year (4th interim dividend portion)

(66,703)

Balance carried forward**458,037**

*Out of 474 million paid-up shares, 37.5 million and 35.5 million shares of National Bank of Pakistan and Allied Bank Limited respectively are exempt from withholding tax on dividends. Accordingly the carry forward of unclaimed withholding tax on dividends has been reduced to the extent of dividends paid to them.

Annex-XLVI

ATLAS POWER LIMITED
Quarterly Indexation/ Adjustment of Tariff

Tariff Components	Reference COD Decision 19 May 2010	Revised Oct. Dec. 2014 Quarter
Capacity Charge (Rs./kW/Hour)		
Fixed O&M - Foreign	0.0962	0.1288
Fixed O&M - Local	0.1147	0.1473
Cost of Working Capital	0.1970	0.1669
ROE	0.4312	0.5250
ROEDC	0.0464	0.0565
Debt Servicing	1.4734	1.3580
Total	2.3589	2.3825
Variable O&M (Rs./kWh)		
Variable O&M - Foreign	0.5075	0.6794
Variable O&M - Local	0.1634	0.2098
Total	0.6709	0.8892
Indexation Values		
Exchange Rate (Rs./USD)	84.350	102.700
US CPI (All Urban Consumers)	216.330	237.852
CPI (General) - Local	154.720	198.700
3 Monthly KIBOR	12.40%	10.18%
Principal Outstanding (Rs. Million)	13,968.41	9,816.05
Hours in the quarter	-	2,208

Note:- Insurance component of capacity charge is not part of quarterly indexation. It is adjusted annually on actual basis as per mechanism stipulated in the decision of the Authority.”

[No.P-II 2 (11)/2007.]

SYED MATEEN AHMED,
Section Officer (Tariff).